Ram Prakash And 2 Others vs State Of U.P. And Another on 15 March, 2024

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2024:AHC:47207

Court No. - 90

Case :- APPLICATION U/S 482 No. - 33017 of 2018

Applicant :- Ram Prakash And 2 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Pramod Kumar Srivastava,Manav Chaurasia,Prem Chandra Chaurasia

Counsel for Opposite Party :- G.A.,D. Kumar. Misra,Dinesh Chandra Yadav

Hon'ble Vikram D. Chauhan,J.

1. List has been revised. No one appears on behalf of opposite party no.2.

1A. Heard learned counsel for the applicants and learned A.G.A. for the State.

2. This application under Section 482 Cr.P.C. has been filed for quashing the impugned order dated 4.9.2018 whereby the discharge application of the applicants have been rejected by the Additional Sessions Judge/Fast Track Court No.1, Kaushambi in Session Trial No.128 of 2018, State Vs. Ram Prakash Vishwakarma and others, arising out of Case Crime No.198 of 2013, under Sections 307, 323, 504 I.P.C. and 3/4 D.P. Act and Section 3/31 of Domestic Violence Act, Police Station Paschim Sharira, District Kaushambi.

3. Learned counsel for the applicants submitted that the compromise has already been entered between the parties on 8.5.2019 before the Allahabad High Court Mediation and Conciliation

Centre, therefore, the present case be finally decided.

4. Learned counsel for opposite party no.2 has not disputed the facts as stated by learned counsel for the applicants. He further contended that opposite party no.2 does not want to proceed with the criminal case against the applicants and the same may be quashed.

5. Learned AGA does not dispute the fact that parties have entered into settlement which is duly verified by the court concerned. It is further submitted that he would have no objection in case criminal proceedings are put to an end. He further submits that in view of settlement there is virtually no chance of any conviction being recorded in the criminal proceedings.

6. Having examined the matter in its totality, this Court is of the view that the criminal proceedings in the present case had essentially been an outcome of a matrimonial dispute; and there are no such over bearing circumstances for which the applicants ought to be prosecuted even after the parties has entered into a settlement. Needless to observe that with the present stand of the parties in terms of their settlement, there is practically no chance of recording conviction, even if the case under the F.I.R. in question is put to trial. In other words, entire exercise of trial would only be an exercise in futility. On the contrary, looking to the nature of dispute and the fact that the disputants have compromised and want to proceed peacefully ahead, it would be in the interest of justice that criminal proceedings in question are quashed.

7. It would be unfair or contrary to the interest of justice to continue with the criminal proceeding or continuation of the criminal proceeding would tantamount to abuse of process of law despite settlement and compromise between the victim and the wrongdoer and to secure the ends of justice, it is appropriate that the criminal case is put to an end.

8. In view of the fact that the parties do not want to pursue the case any further as stated by them and the fact that matter has been mutually settled between the parties in view of the compromise dated 18.5.2019, no useful purpose would be served in proceeding with the matter further.

9. Thus, in view of the well settled principles of law as laid down by the Hon'ble Apex Court in Parbatbhai Aahir Vs. State of Gujarat (2017) 9 SCC 641, Gian Singh Vs. State of Punjab (2012) 10 SCC 303 and State of M.P. Vs. Laxmi Narayan, (2019) 5 SCC 688, the proceedings of the aforesaid case against the applicants-Ram Prakash, Bachcha Lal and Gyanwati @ Gyanwati is hereby quashed.

10. The present application under Section 482 Cr.P.C. is, accordingly, allowed.

Order Date :- 15.3.2024 Bhaskar